Oakland Tribune

A RESPONSIBLE METROPOLITAN NEWSPAPER

98th YEAR, NO. 75 F TUESDAY, MARCH 16, 1971 15¢ DAILY, $3.75 A MONTH

Merritt Shut In Takeover By Militants

By BEV MITCHELL
Tribune Education Writer

Dr. Norvel Smith, president of Merritt College, said today the campus will remain closed again tomorrow in the wake of a militant "takeover" by students yesterday.

He said he has no plans to call in police, although the students have seized four administrative offices and said they will hold them until a series of demands is met.

Dr. Smith said he hopes to "regain control of the campus" in time to conduct final examinations next week.

Last night, Smith told the Peralta Colleges District board that campus security forces were insufficient to guarantee the safety of college personnel. He canceled classes today.

Today he said the group of about 90 who invaded the offices and spent the night in the building is composed of members of the Black Students Union, the Revolutionary Studies Group, Chicano Students Union, Black Veterans and "What appears to be a segment of Berkeley nonstudents."

As he read a prepared statement at his news conference, he was interrupted by shouts of "Lies, lies" from Black Panther Douglas Miranda.

Smith told the board last night that two persons, Asst. Dean of Business Donald Dye and a student, were slugged and that he himself was threatened.

Several demands were made by the Students Coalition, most of them centering around control of the present Grove Street Merritt campus after the new Merritt site in the vicinity of Skyline Boulevard and Redwood Road opens April 1.

Last month Peralta board members approved formation of a negotiating committee to decide what equipment and personnel should be moved to the new site.

Militant students on the committee had been unable to agree on the composition of the group (faculty members selected, they said, failed to represent the ethnic mix of departments). Last night the board agreed by consensus to proceed with the transfer of equipment to the new campus.

Dr. Smith said that preregistration indicates students prefer the Grove Street campus two to one over the hill campus.

Although he recommended moving only one-fourth of the Grove Street equipment, he said he doubted he could "ever do anything to satisfy" the militant group.

Miranda and Black Student Union leader Jim Evans were among those he named who have "told me boldly in the past they were going to keep the hill campus from opening."

Yesterday's takeover and the

See Back Page, Col. 3

Benefits Bill Sent To Nixon

WASHINGTON (UPI) — Congress approved and sent to the White House today a 10 per cent across-the-board increase in Social Security benefits for 26 million Americans.

Acting with surprising swiftness, the House approved the increase, retroactive to Jan. 1, in the morning and the Senate completed congressional action less than two hours later.

It was the first major legislation to emerge from the new Congress. Its progress was speeded when the Senate tacked the Social Security benefits increase onto a bill raising the national debt limit from $395 billion to $430 billion.

The vote in the Senate was 75 to 6. The vote in the house was 358-3.

The bill would provide a 10 per cent raise for all regular Social Security recipients and a 5 per cent raise for persons over 72 who receive lower benefits because they were not in the system long enough to qualify.

The first bigger checks would go out in early June and a separate payment covering the retroactive amount probably would be made about the same time, officials said.

To help finance the increase, the wage base on which the Social Security payroll tax is computed would increase effective Jan. 1, 1972, from $7,800 to $9,000. This would mean a tax increase of $62.40 a year for workers earning $9,000 or more, and for their employers.

The cost of the increase would be $3.6 billion for a full year.

At the insistence of House leaders, the conference committee trimmed out of the bill other increases voted by the Senate that would have increased the cost by more than another $2 billion.

One of these would have raised the minimum payment from $64 a month to $100 a month. As approved by the conference, the minimum would go up only the standard 10 per cent — to $70.40.

PAUL KAPLAN WAS WEARING FOUR 'IT'S A GIRL' BUTTONS
His own parents accompanied him from hospital after birth of quints—(AP)

Quints Born in L.A. —Parents Jubilant

LOS ANGELES (AP) — An insurance man's wife gave birth to quintuplets early today. One, a boy, was stillborn, but doctors said the four others, all girls, appeared healthy.

The babies, 10 weeks premature, weighed between one and a half and two pounds apiece and were reported in guarded condition. They were placed in isolettes under constant observation at Valley Presbyterian Hospital.

The parents are Paul Kaplan, 28, an insurance administrator, and his wife, Pearl, 25. She was described in excellent condition by her obstetrician, Dr. Hubert Rubenstein.

Kaplan told a newsman he and his wife first learned they were going to have five children — their first — about five weeks ago.

Kaplan, wearing four pink buttons reading "It's a Girl," told a news conference his wife had been taking a fertility drug, Humagon, manufactured in Switzerland, for about a year.

He had heard fertility drugs sometimes produced multiple births, he said, but said he and his wife, married 3½ years, "felt it was a matter of having no children or going this way."

He said his wife was "ecstatic" and added they had tentatively picked these names: Daniello, Kevyn, Donn and Marci.

Sixteen physicians assisted in the delivery — a pediatrician, obstetrician and anesthesiologist for each baby and a cardio-pulmonary specialist. The first baby was born at 12:28 a.m. The others followed at 12:30, 12:31, 12:39 and the fifth, the stillborn boy, at 12:40.

Mrs. Kaplan entered the hospital Feb. 9, the day of the massive earthquake. Hospital spokesmen said the quake was not a factor in her admission.

Lois Wilson, director of nursing, said the babies would have to remain in isolettes until they weigh at least five pounds — projected at from two to three months.

Kaplan said a cousin of his once had twins.

"They're just great," he said. "They're sitting up there dinging their arms and kicking around."

The quintuplets are believed to be the first born in the Los Angeles area.

See Back Page, Col. 1

Vote at 18 OK'd By State Senate

SACRAMENTO (AP) — The Senate passed 28-9 today a proposal to let Californians decide next year if persons between 18 and 21 should vote in state and local elections.

The U.S. Supreme Court has upheld a federal law giving the franchise to the younger persons in federal elections. However, the California Constitution must be changed to extend that right to other elections.

Today's vote was the first time an 18 - year - old vote measure has cleared the upper house, which killed an Assembly-passed bill last year.

Sen. George Moscone, D-San Francisco, sponsored the measure, which now goes to the Assembly. The bill would also wipe out literacy tests for voters and would cut state and county residency requirements to 30 days instead of 54.

Suit to Halt Peripheral Canal Filed

The Sierra Club and Friends of the Earth filed a joint suit in U.S. District Court in San Francisco today to hold up construction or operation of several of the key components of the State Water Project, including the Peripheral Canal.

The suit charges that the State Department of Water Resources and the U.S. Bureau of Reclamation have not met the requirements of federal law in the building of the Tracy and Delta pumping plants and that they should be enjoined from building the East Side Canal in the San Joaquin Valley and the Peripheral Canal for the same reasons.

Three statutes have been violated, according to the suit — the Rivers and Harbors Act of 1899, the National Environmental Policy Act of 1969 and the Fish and Wildlife Conservation Act.

Listed also as plaintiffs are Hank Schramm, Bay Area commercial and sports fishing operator; Dr. Jerald Bisel, who lives adjacent to Sand Mound Slough, Bethel Island, and owns a pleasure boat; and William Dixon, owner of substantial Delta property and a partner in the St. Germain Duck Club on Grizzly Island.

Sierra Club attorney John Clark said the Rivers and Harbors Act requires that before any navigable water is diverted or impounded the consent of the Congress and the Corps of Engineers must be obtained, and this has not been done.

The "environmental impact statement" required by the Environmental Policy Act has not been met and a similar statement on the effects on fish and wildlife has not been

See Back Page, Col. 1

Rogers Warns Of World War

Mideast Tension Building

By RAYMOND LAWRENCE
Foreign News Analyst

Secretary of State William P. Rogers said today in Washington that failure of Middle East peace efforts could produce a very dangerous situation and "possibly lead to World War III."

He strongly urged Israel to return to its pre-1967 war borders with its Arab neighbors, contending its security did not depend on "acquisition of territory."

Then, the secretary pledged long term military and economic support to Israel.

In Jerusalem, despite the sharp rebuke from Washington, Premier Golda Meir won an overwhelming vote of confidence in a turbulent session of the parliament.

She stood her ground on withdrawal from the most important occupied Arab territories but did not rule out negotiations on the general question.

The opposition right-wing bloc that opposes any withdrawals and had proposed no-confidence motions walked out of the parliamentary session even before the final vote was taken. The government vote was 62, with one against and 12 abstaining.

Secretary Rogers told a news conference:

"The climate has never been better for a settlement in the Middle East."

But he added: "If we don't make a settlement now we're going to plant the seeds of future war."

Later, he warned again: "We think that if the situation is not worked out in the reasonable future the very dangerous situation could develop into possibly lead to World War III."

And he acknowledged that differences between Egypt and Israel over withdrawal from the Sinai Peninsula created an impasse in negotiations.

Rogers sharply disputed Premier Meir's contention

See Back Page, Col. 7

Thousands Mourn Young —'Great Man'

NEW YORK (AP) — Several thousand persons, prominent national leaders among them, gathered in Riverside Church today and heard the late Whitney M. Young Jr. eulogized as a man committed to uplifting the poor and the black through "strategies that were effective, not violent."

"If it is true that great men are those who had compassion for the very poorest of their brothers, then Whitney Young qualifies," said Dr. Benjamin E. Mays, president emeritus of Moorehouse College, Atlanta, Ga.

Mays, who also delivered the eulogy at services for Dr. Martin Luther King Jr. in 1968, spoke at funeral services for Young, the executive director of the National Urban League.

He died last Thursday while swimming off Lagos, Nigeria.

"He had the mind, the intelligence and the will to serve in many professions, but he chose to do something in a unique way to lift America's poor to a place of dignity," by finding thousands of jobs for them, continued Mays.

Quoting the late civil rights leader, Mays described Young's philosophy:

"If we must politicize in this country, let us politicize not on the basis of race, religion or economic status; but let us politicize on the basis of de-

See Back Page, Col. 1

Saigon Forces Retreat in Laos

SAIGON (UPI) — South Vietnamese troops retreated today by foot and by helicopter from positions deep inside Laos and moved closer to the South Vietnamese border. The U.S. command rushed U.S. artillery reinforcements to the border area to pound advancing Communist forces.

Altogether, 2,000 South Vietnamese withdrew from positions astride the Ho Chi Minh Trail inside Laos. One force of 700 was flown out under fire by U.S. helicopters from fire base Lolo, the fourth major ARVN fire base abandoned in Laos in the face of advancing tank-led Communist troops.

Lolo is nine miles southeast of the supply hub of Sepone, abandoned to an advancing Communist division last week. The others withdrawing were government infantrymen thwarted in their efforts to reach a big Communist supply dump just south of Lolo. They fought their way back by foot to fire base Brown, four miles farther southeast.

The Communists had attacked Lolo with rockets, mortars and tank guns and U.S. choppers braved heavy antiaircraft fire to bring out the ARVN troops. The South Vietnamese spiked six artillery pieces before leaving and the equipment was later bombed by B52s.

U.S. fighter-bombers and helicopter gunships poured bombs, rockets and machine-gun fire on the Communists during the evacuation, the front dispatches reported. The weather lifted after a period of heavy clouds and fog.

The troops from fire base Lolo were flown to another

See Back Page, Col. 6

The Case Against Police Amendment

BY NOEL LIEBERMAN
Tribune Staff Writer

Last of a Series

This is the last of three articles about a proposal to divide the Berkeley police department into three separate units controlled by elected neighborhood councils.

The controversial measure is drawing attention throughout the area because of its implications to other cities where the issue of community control of police is being discussed.

The measure will appear on the April 6 Berkeley municipal ballots as Charter Amendment I.

The articles provided various viewpoints of the proposal.

BERKELEY — Although some foes of the proposal to restructure Berkeley's police system simply defend traditional organization, others have attacked the amendment's wording and the boundaries it establishes.

The amendment, they assert, is a "poorly drawn document, whose wording so vague, ambiguous, inconsistent and uncertain as to be unenforceable and unworkable."

The proposal to divide the Berkeley police department is on the April 6 ballot as Charter Amendment I.

The boundaries established for the three police departments for the predominantly black, white and campus communities are inherently divisive and would "institutionalize apartheid" and foster separatist thinking, they argue. Berkeley has led the nation in building an integrated city and the amendment would represent a "step backward toward segregation," they reason.

Mayor Wallace Johnson, who has led the fight against the amendment as chairman of One Berkeley Community (OBC), believes the community control structure would "precipitate a hopeless legal snarl because its wording is so fraught with ambiguities and legal complications."

Johnson questions what would occur in a police department governed by two elected neighborhood councils and two appointed commissioners when they are unable to agree on policy. Although the amendment provides for a process by which the councils could call a joint meeting, Johnson avers that chaos would prevail if they were unable to resolve their differences.

The amendment, Johnson points out, also fails to list what constitutes a quorum and ruling majority for neighborhood council meetings. Without that distinction, he claims, the provision for special meetings upon the request in writing of 20 per cent (three) of the councilmen could be exercised to create that "any three ... could meet anywhere, any time ... and hold the future of Berkeley in their hands."

Police Chief Bruce R. Baker argues that the amendment offers no orderly transition from the present police department to the proposed three departments. In his opinion, the present department would cease to exist legally when the amendment became effective, and Berkeley would be without its own police service at least until neighborhood councils were elected, commissioners were appointed and new policemen who meet the residency re-

See Back Page, Col. 3

Bomb Threats Balk Hearing For Angela

SAN RAFAEL — Two telephoned bomb threats kept a court hearing for black militant Angela Davis from going on as scheduled today at the Marin County Civic Center.

Officials were hopeful that the court proceedings would take place this afternoon.

Pre-trial arguments were due to begin at 10 a.m. in Superior Court but the entire Civic Center, which houses the courts as well as other county offices, was ordered cleared when the first bomb threat came in to the district attorney's office at 9:28 a.m.

About 1,200 persons, including more than 150 seeking admittance to the Davis hearing, were evacuated and stood outside while officers combed the building.

After an hour's search proved negative, the Civic Center was reopened. Then at

See Back Page, Col. 2

His Shattered Dream Ends in Death

FRED TENBRINK
Gunman's victim

The shattered life of Fred Tenbrink came to a quiet close last night.

Death took the young restaurant owner in Herrick Memorial Hospital, where a violent explosion of gunfire had put him two months ago.

He died on the eve of a second dinner being held by friends and concerned strangers to help pay $20,000 in medical expenses.

Tenbrink, 27, and his Italian-born wife Maria owned the Villa Roma Restaurant at 2329 San Pablo Ave., Berkeley, and were working hard to make a go of it.

It was a family operation. Maria and her mother, Mrs. Asunta Maieroni, 57, cooked. Tenbrink waited tables and tended bar. His father-in-law and brother-in-law helped out in the kitchen.

On January 14th, a volley of bullets turned the dream of a successful business into a horrible nightmare.

A man, who police said had been drinking, went berserk in the small restaurant, stole a gun from a friend and opened fire.

Bruno Maieroni, 35, Tenbrink's brother-in-law, died instantly.

Mrs. Maieroni was badly wounded but recovered.

And Tenbrink, a bullet near his heart, was rushed to the hospital in critical condition.

Police arrested Chauncey Gilmore Jr., 20, and charged him with one count of murder. A second count was added today.

Friends and strangers immediately rallied to Tenbrink's aid.

They wanted to help both Tenbrink and his pregnant wife, whom he married in Germany while in the Army. She speaks very little English and is now on welfare. There are two other children.

Tenbrink fought desperately for life, though a bullet had robbed him of speech and massive doses of antibiotics had impaired his hearing. There were three operations.

But a blood clot developed, and at 6:15 p.m. yesterday, the fight was over.

The second benefit dinner planned for tonight will still be held. It will be served between 3 and 9 p.m. at Bella Napoli, 2330 Telegraph Ave. A donation of $7.50 a plate is being asked.